

IN THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

PRESENT:

MR. JUSTICE UMAR ATA BANDIAL
MR. JUSTICE SAJJAD ALI SHAH
MR. JUSTICE SYED MANSOOR ALI SHAH
MR. JUSTICE QAZI MUHAMMAD AMIN AHMED
MR. JUSTICE AMIN-UD-DIN KHAN

CIVIL REVIEW PETITIONS Nos. 292 TO 302 of 2021 &
CIVIL REVIEW PETITIONS Nos. 351 TO 432 of 2021 &
CIVIL REVIEW PETITIONS Nos. 442 TO 456 of 2021

(For review of the judgment dated 17.08.2021 passed in CA No.491 of 2012, etc.)

A/W

CMA Nos. 11812 TO 11814 OF 2021 &
CMA Nos. 11837, 11862 TO 11864 OF 2021 &
CMA Nos. 11902-11903, 11982-11983 OF 2021 &
CMA Nos. 11987 OF 2021 &
CMA Nos. 11679, 12017, 12019, 12020, 12024 OF 2021 &
CMA Nos. 12025, 12028, 12029, 12031-12033 OF 2021 &
CMA Nos. 12035, 12075, 11993, 12103-12104 OF 2021 &
CMA Nos. 12161-12162, 12172-12173, 12403 OF 2021 &
CMA Nos. 12372-12373 OF 2021

A/W

CIVIL MISC. APPEAL NO.168, 158 & 175 OF 2021

Hadayat Ullah etc.

...Petitioner(s)

Versus

Federation of Pakistan etc.

...Respondent(s)

In attendance:

Kh. Muhammad Arif, ASC
(in CRP 292,388/21)
Mr. Muhammad Yousaf Khan,
(in CRP 293/21)
Mr. Muhammad Tariq Asad, ASC
(in CRP 294,CMA12033/21)
Mr. Khalid Javed Khan,
Attorney General for Pakistan
Mr. Ayaz Shoukat, DAG
a/w Ms. Maryam Rasheed &
Mr. Usman Paracha, Advocates.
(in CRP 295/21)
Muhammad Nawaz Abbasi (in person)
(in CRP 296,446/21)
Mr. S.A. Mehmood Khan Sadozai, ASC
(in CRP 297-300,416/21)
Mr. Muhammad Ilyas Siddiqui, ASC
(in CRP 301/21)
Mr. Hazrat Said
(in CRP 302/21)
S. Iftikhar Hussain Gillani, Sr. ASC
(in CRP 351,392/21)
Ms. Shireen Imran, ASC
(in CRP 252,393,394,448,CMA12104/21)
Mr. M. Safdar Shaheen Pirzada, ASC
(in CRP 253,372,375/21)
Mr. Nisar A. Mujahid, ASC
(in CRP 354/21)
Raja Abdul Ghafoor, AOR/ASC
(in CRP 355,374,CMA11982,12029/21)
Ch. Afrasiab Khan, ASC
(in CRP 356/21)
Mian Raza Rabbani, Sr. ASC

Mr. Saalim Salam Ansari, ASC
Assisted by Mr. Zeeshan Abdullan
(in CRP 357,CMApl.175, CMA12172,12173/21)

Mr. Shah Khawar, ASC
Mr. Hassan Rashid Qamar, ASC
(in CRP 355,378-381, 442, 455,456,CMA12028,12162/21)

Mr. Zubair Hussain, ASC
(in CRP 359,CMA11983/21)
Syed M. Iqbal Hashmi, ASC
(in CRP 360-363/21)
Mr. Mazullah Khan (in-person)
(in CRP 364/21)
Mr. Zulfikar Khalid Maluka, ASC
(in CRP 365,428/21)
Mr. Ghulam Sajjad Gopang, ASC
(in CRP 366/21)
Mr. Omer Farouk Adam, ASC
(in CRP 367/21)
Mr. Tariq Mehmood Mughal, ASC
(in CRP 368/21)
Syed Rifaqat Hussain Shah, AOR/ASC
(in CRP 369,385,420,CMApl.168, CMA 12032,12035/21/21)

Mr. Muhammad Sharif Janjua, AOR/ASC
(in CRP 370,386,399,400,423/21)
Mr. Saleem Ullah Ranazai, ASC
(in CRP 371/21)

Mr. Kamran Murtaza, Sr. ASC
(in CRP 373,377/21)
Mr. Waseem Sajjad, Sr. ASC
(in CRP 376,383/21)
Dr. Saeed Ahmed (in person)
(in CRP 382/21)
Mr. Aftab Alam Yasir, ASC
(in CRP 384,CMA12020/21)

Mr. Abdul Razzaq Shar, ASC
(in CRP 387,454,CMA12024/21)
Mr. Jam Khursheed Ahmed, ASC
(in CRP 389/21)
Mr. Muhammad Sajid Khan, ASC
(in CRP 390,CMA12031,12161/21)

Mr. Hamid Khan, Sr. ASC
Mr. M. Waqar Rana, ASC
(in CRP 391/21)

Mr. Liauqat Ali Karim, ASC
(in CRP 395/21)
Mr. Abid A. Zuberi, ASC
(in CRP 396/21)
Mr. Azhar Navid Shah, ASC
(in CRP 397/21)
Malik Faiz Rasool Rajwana, ASC
(in CRP 398/21)

Mr. Muhammad Umair Baloch, ASC
Mr. Shoaib Shaheen, ASC
(in CRP 401-415,418,419,CMA12372/21)

Mr. Muhammad Haseeb Jamali, ASC
(in CRP 417/21)

Mr. Malik Mansoor Hussain, ASC
(in CRP 421/21)

Ch. Aitzaz Ahsan, ASC
Mr. Gohar Ali Khan, ASC
(in CRP 422/21)

- Mr. Shakirullah (in-person)
(in CRP 424/21)
Mr. Muhammad Nawaz Rai, ASC
(in CRP 425/21)
Mr. Muddasar Khalid Abbasi, ASC
(in CRP 426/21)
- Mrs. Kausar Iqbal Bhatti, ASC
(in CRP 427/21)
- Khalid Javed (in-person)
(in CRP 429/21)
Mr. Abdul Latif Afridi, Sr. ASC
(in CRP 430-431/21)
S. Asghar Hussain Sabzwari, Sr. ASC
S. Qamar Hussain Shah Sabzwari, ASC
S. Nayyar Hussain Bukhari, ASC
(in CRP 432/21)
Sh. Mehmood Ahmed, AOR
(in CMA 11812/21)
Mr. Sikandar Javed, ASC
(in CMA 11813,11993/21)
Ms. Attiya Khanam (in-person)
(in CMA 11814/21)
Fazal e Rabbi (in-person)
(in CMA 11837/21)
Malik Muhammad Riaz, (in-person)
(in CMA 11862/21)
Mr. Arshad Ali Makhdoom, ASC
(in CMA 11863/21)
Muhammad Ibrahim (in-person)
(in CMA 11864/21)
Mr. Faisal Siddiqui, ASC
(in CMA 11902/21)
Mr. Anees M. Shahzad, AOR/ASC
(in CMA 11903/21)
Mr. Mir Aurangzeb, AOR/ASC
(in CMA 11987/21)
Mr. Jawaid Masood Tahir Bhatti, ASC
(in CMA 11679,CM.Apl.158/21)
Mr. Mir Shahzad Khan Talpur (in-person)
(in CMA 12017/21)
Malik Muhammad Munsif Awan, ASC
(in CMA 12019/21)
Muhammad Afzal Khan
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Tassawar Abbas Tanvir (in-person)
(in CRP 443/21)
Dr. Umar Farooq Siddiqui (in-person)
(in CRP 444/21)
Sardar M. Latif Khosa, Sr. ASC
Sardar M. Shahbaz Khosa, ASC
(in CRP 445,447/21)
Mr. Pervez Rauf, ASC
(in CRP 449,452/21)
Mr. Mir Afzal Malik, ASC
(in CRP 450/21)
Malik Saleem Iqbal Awan, ASC
(in CRP 453/21)
Raja Farakh Arif Bhatti, ASC
(in CMA 12075/21)
Mr. Ria M. Nawaz Kharal, ASC
(in CMA 12103/21)
Ch. M. Younas, ASC
(in CMA 12403/21)
Mr. Shahid Anwar Bajwa, ASC
(in CMA 12373/21)
Mr. Niazullah Niazi, AG ICT

- SSGPL : Barrister Umer Aslam
- State Life : Syed Waqar Naqvi, ASC

OPF : Mr. Aftab Alam Yasir, ASC
SNGPL : Mr. Asad Jan, ASC
Date of Hearings : 01,06-09,13-17 December, 2021

JUDGMENT:

UMAR ATA BANDIAL, J. By this judgment we are deciding 108 Review Petitions, 35 Civil Misc. Applications and 3 Civil Misc. Appeals filed against the judgment of this Court reported as **Muhammad Afzal Vs. Secretary Establishment Division** (2021 SCMR 1569) dated 17.08.2021 (“**judgment under review**”).

FACTUAL BACKGROUND

2. In order to understand the objections raised, it is helpful to briefly traverse the history of the matter at hand. The genesis of these proceedings can be found in the critical period of 01.11.1993 to 30.11.1996 (the significance of this time frame will be explained shortly) when numerous appointments, running into the thousands, were made to various corporation and government services and autonomous/semi-autonomous bodies (“**employers**”) by the political government of the time i.e., the Pakistan Peoples Party (“**PPP**”). However, over the course of the next 2-3 years the appointments so made were reversed by the different political governments who came into power. Eventually, when PPP won the General Elections in 2008, the persons who had been removed were reinstated en masse with the aid of Ordinances, the first of which was promulgated on

14.02.2009. It was termed the ‘Sacked Employees (Reinstatement) Ordinance, 2009’ (**“Ordinance I”**). The purpose of this Ordinance was laid down in its preamble, which reads as below:

“Whereas it is expedient for the purpose of providing relief to persons who were appointed in a corporation service or autonomous or semi-autonomous bodies or in Government service during the period from the 1st day of November, 1993 to the 30th day of November, 1996 and were dismissed, removed or terminated from service during the period from the 1st day of November, 1996, to the 31st day of December, 1998;”
(emphasis supplied)

3. It may be observed from the above-cited passage that the Ordinance was indeed enacted to grant the relief, *inter alia*, of reinstatement to a group of people (**“beneficiary employees”**) who were appointed in the service of employers between 01.11.1993 and 30.11.1996 but were removed during the period 01.11.1996 to 31.12.1998. However, no grounds were specified in the Ordinance to justify the relief being granted to only this specific class of persons. Ordinance I was followed by a chain of Ordinances promulgated on 11.06.2009 (**“Ordinance II”**), 30.10.2009 (**“Ordinance III”**) and 05.02.2010 (**“Ordinance IV”**), respectively. All three subsequent Ordinances were almost verbatim replicas of their predecessor Ordinance with some very minor changes that are not relevant for present purposes.

4. Ultimately PPP, perhaps to achieve finality in the matter and to provide permanent relief to the beneficiary

employees, introduced the Sacked Employees Reinstatement Bill, 2010. The same was passed by Parliament and received the assent of the President on 06.12.2010 bearing the title of 'Sacked Employees (Re-instatement) Act, 2010 ("**Act**"). The preamble to this Act reads:

"Whereas it is expedient for the purpose of providing relief to persons who were appointed in a corporation service or autonomous or semi-autonomous bodies or in Government service during the period from the 1st day of November, 1993 to the 30th day of November, 1996 (both days inclusive) and were dismissed, removed or terminated from service during the period from the 1st day of November, 1996 to the 12th day of October 1999 (both days inclusive);"
(emphasis supplied)

It becomes apparent from the preamble quoted hereinabove that whilst the object of the Act remained consistent with that of the Ordinances, the class of persons who were entitled to its benefit was enlarged. This was done by moving the last date of dismissal, removal or termination from service from 31.12.1998 to 12.10.1999. Again the Act failed to indicate the rationale for favouring only such affected persons with this extraordinary relief. Allegedly, thousands of beneficiary employees (the exact figure is disputed) were reinstated pursuant to the Ordinances and the Act. This act of reinstatement triggered a two-fold series of litigation:

- i. By the regular employees of the employers whose seniority had been affected due to the reinstatement of the beneficiary employees; and

- ii. By the employees who were eligible to receive the benefit of the Act but were not granted the same by the employers.

5. These cases, decided primarily over a period of 2-4 years by the various High Courts, eventually arrived in the Supreme Court. They pertained to the employees of 10 employers, namely:

- i. Intelligence Bureau (“**IB**”);
- ii. Commissioner Afghan Refugees, KPK (“**CAR**”);
- iii. National Highway Authority (“**NHA**”);
- iv. Pakistan Telecommunication Company Ltd (“**PTCL**”);
- v. Overseas Pakistani Foundation (“**OPF**”);
- vi. State Life Insurance Corporation (“**SLIC**”);
- vii. Civil Aviation Authority (“**CAA**”);
- viii. Water and Power Development Authority (“**WAPDA**”);
- ix. Sui Southern Gas Company Ltd (“**SSGC**”); and
- x. Trading Corporation of Pakistan (“**TCP**”).

6. After hearing the parties, the judgment under review held that the Act had violated Articles 4, 9 and 25 of the Constitution by granting backdated seniority to the beneficiary employees; and it had contravened Articles 240 and 242 of the Constitution by overlooking the relevant framework established by the aforesaid provisions for regulating appointments to the civil service/service of Pakistan. Consequently, the following pronouncements were made in respect of the Act and the benefits extended under it to the beneficiary employees:

“59. Therefore, in light of the discussion above, the Act of 2010 is hereby declared to be *ultra vires* of the Constitution. The effect of

such a declaration is that any/all the benefits accrued to the beneficiaries are to be ceased with immediate effect.

60. This Court, in light of Shahid Pervaiz (supra), is empowered/mandated to examine the benefits accruing to each recipient and undo the same if it is not a past and closed transaction. Therefore, the cases of employees who have retired and/or passed away are past and closed transactions as we do not find it appropriate to interfere in their cases as it will be an exercise in futility.

61. Whereas, the beneficiaries of the Act of 2010, who are still in service, will go back to their previous positions, i.e. to the date when the operation of the Act of 2010 has taken effect. However, it would be inequitable to reverse any monetary benefits received by them under the Act of 2010 for the period they have served and those shall remain intact as they were granted against service. However, the lump sum received by such 'sacked employees' upon reinstatement shall be reversed."

(emphasis supplied)

7. As a result of this decision, thousands of beneficiary employees who had rendered service of 10 years or more after their reinstatement under the Ordinances or Act were removed by their respective employers. Feeling aggrieved by this decision, many beneficiary employees and the Federation filed review petitions against the judgment under review.

ARGUMENTS OF COUNSEL

8. Mainly the contentions of learned counsel representing the beneficiary employees and the learned Attorney General can be summarised as follows:

- i. No notice under Order XXVII-A of CPC was issued to the Attorney General before the judgment under review was released;
- ii. The non-obstante clause contained in Section 4 of the Act did not have any bearing on the *vires* of the Act as a whole;
- iii. The reinstatement of the beneficiary employees has not infringed the fundamental rights of any regular employee;
- iv. The application of Articles 240 and 242 of the Constitution to the facts of the present case was misconceived as the beneficiary employees were not civil servants;
- v. The beneficiary employees granted relief under the Act constituted a distinct class based on reasonable classification;
- vi. Some of the beneficiary employees were dismissed, removed or terminated by the caretaker government which was not legally permissible;
- vii. Instead of declaring the Act void as whole, the judgment under review should have read down its unconstitutional provisions, if any; and
- viii. Even if the Act was *ultra vires* the Constitution, such declaration should have been prospective in effect.

9. After hearing the petitions, applications and appeals over the course of 10 days, the Court by a majority of 4-1 dismissed the review petitions vide short order dated 17.12.2021:

“O R D E R

For reasons to be recorded later, these review petitions are dismissed. The impugned legislation, namely, the Sacked Employees (Re-instatement) Act, 2010 (“**Act**”) is held to be violative of, *inter alia*, Articles 25, 18, 9 and 4 of the Constitution of Islamic Republic of Pakistan, 1973 (“**Constitution**”) and

therefore void under the provisions of Article 8 of the Constitution.

2. However, in exercise of the Court's jurisdiction under Article 184(3) of the Constitution read with Article 187, we have taken into consideration the services rendered by the re-instated employees of the "employers" [as defined in Section 2(d) of the Act] and hereby order that:

i. Employees who were holding posts that on the date of their initial termination of service (from 01.11.1996 to 12.10.1999) did not require any aptitude or scholastic or skill test, for appointment thereon, shall be restored from the date of the judgment under review to the posts they were holding on the same terms and conditions of service applicable on the date of their termination pursuant to the judgment under review.

ii. Such other employees who were holding posts that on the date of their initial termination of service (from 01.11.1996 to 12.10.1999) required the passing of any aptitude or scholastic or skill test, for appointment thereon shall from the date of the judgment under review be restored to their said posts on the same terms and conditions of service applicable on the date of their initial termination.

iii. Any improvement in the terms and conditions of service of all the restored employees shall be granted strictly in accordance with the laws and rules applicable to their service or employment and in the absence thereof by regulations laid down for this purpose by their respective employers.

iv. The relief granted in sub-paragraphs (i) and (ii) above shall not be granted to employees whose initial termination of service (from 01.11.1996 to 12.10.1999) was on grounds of absence from duty, misconduct, corruption, misappropriation of money/stock or unfitness on medical grounds if such termination was not set aside finally by a Court of law.

Syed Mansoor Ali Shah, J.

Parliamentary sovereignty or legislative supremacy is the cornerstone of a strong democracy. We must, therefore, recognize the central role of the legislature. Undermining the legislature undermines democracy. Both the legislature and the judiciary must play their role in a spirit of profound respect for the other and within the limits set out in the Constitution. Rule of law is not merely public order, it is social justice based on public order. The law exists to ensure proper social life by balancing the needs of the society and the individual. The courts must protect this rich concept of rule of law. Under Article 8 of the Constitution, any law enacted by the legislature is void only to the extent it takes away or abridges fundamental rights of the people.

2. For the reasons to be recorded later and subject to ancillary and incidental declarations and orders (if any) to be made in the detailed judgment, I allow these review petitions in the following terms:

i. The judgment under review is recalled;

ii. The following Sections and part of Sections of the Sacked Employees Reinstatement Act 2010 are declared *ultra vires* the Constitution:

a) Sections 4(a) and 10 to the extent of reinstatement and regularization on “one scale higher”, which give an undue advantage to the reinstated employees to the detriment of the rights of the already working regular employees and thus violate their fundamental rights. The provisions of the said Sections, except the words “one scale higher”, shall however remain operative with effect from the date of enactment of the Act, and be read to mean the reinstatement and regularization in the same or restructured, as the case may be, scale, grade, cadre, group, post or designation.

b) Sections 2(f)(vi), 11, 12 and 13, which deal with and provide for reinstatement and regularization of such sacked employees who had been dismissed, removed or

terminated from service on account of absence from duty, misconduct, mis-appropriation of Government money or stock, or unfitness on medical grounds, and the determination of their guilt or medical unfitness attained finality by being unchallenged or unsuccessfully challenged. Such employees fall outside the class of sacked employees who suffered “political victimization,” envisaged by the Act for a beneficial treatment, and they by themselves do not constitute a distinct class having an intelligible differentia, which bears a reasonable relation to the object and purpose of the Act.

iii. All the employees terminated from service on the basis of the judgment under review, stand restored in the service with effect from the date they were so terminated, and shall be paid the pay of the intervening period treating the said period as an extraordinary leave with pay; and

iv. The cases decided by the judgment under review, which now stands recalled, shall be deemed pending and decided on their own merits by the regular Bench(es) of this Court in accordance with the provisions of the Sacked Employees Reinstatement Act 2010, subject to the declaration made at No. ii above.

ORDER OF THE BENCH

For reasons to be recorded later, by a majority of four to one (Justice Syed Mansoor Ali Shah dissenting), these review petitions are dismissed.”

SCOPE OF REVIEW

10. Before setting out our detailed reasons for upholding the judgment under review dated 17.08.2021, we consider it appropriate to briefly specify the scope of review jurisdiction that has been conferred on this Court in terms of

Article 188 of the Constitution. A succinct yet comprehensive explanation of this power can be found in the case of **Mukhtar Mai Vs. Abdul Khaliq** (2019 SCMR 1302):

“5. ... A review... will [not] be warranted merely because the conclusion drawn is wrong or erroneous but is limited to eventualities where something obvious has been overlooked or where there is a glaring omission or patent mistake of fact or law, which is self-evident, manifest and floating on the surface, materially affecting the outcome of the adjudicatory process...”

(emphasis supplied)

What becomes clear from the above-mentioned passage is that the review jurisdiction of the Court operates in a limited area. A review does not succeed merely because a material error has crept into the disputed judgment. Instead, a review is only allowed when the material error alters the outcome of the case thereby rendering the disputed judgment bad law. Therefore, it is against this test that the decision arrived at in the judgment under review shall now be examined.

OBJECTIONS TO THE JUDGMENT UNDER REVIEW

A. Notice to Attorney General under Order XXVII-A CPC

11. One of the main objections raised by learned counsel against the judgment under review was the failure of the Court to issue a notice to the Attorney General even though the matter at hand involved a ‘substantial question as to the interpretation of constitutional law.’ Reliance was placed on two judgments of this Court reported as **Federation of Pak Vs. Aftab Ahmad Khan Sherpao** (PLD

1992 SC 723) and **Federal Public Service Commission Vs. Muhammad Afaq** (PLD 2002 SC 167).

12. In our view, there may have been weight in learned counsels' arguments if no notice had actually been served on the learned Attorney General. However, the record suggests otherwise. In the leave granting order dated 18.05.2012, passed in the main Civil Appeal No.491 of 2012 titled Muhammad Afzal Vs. Secretary Establishment Division, notice was specifically issued to the learned Attorney General (pg.61).

Therefore, when compliance was made with Order XXVII-A of the CPC, no ground for review is made out in this regard.

B. Articles 240 and 242 of the Constitution

13. The next argument of learned counsel was that the judgment under review had wrongly held Articles 240 and 242 of the Constitution to be applicable to the reinstatement process of the beneficiary employees under the Act when none of them were in fact civil servants.

14. To better understand the proposition put forward by learned counsel, Articles 240 and 242 are being produced below:

“240. Appointments to service of Pakistan and conditions of service. Subject to the Constitution, the appointments to and the conditions of service of persons in the service of Pakistan shall be determined-

(a) in the case of the services of the Federation, posts in connection with the affairs of the Federation and All-Pakistan Services, by or under Act of [Majlis-e-Shoora (Parliament)];

...

242. Public Service Commission. (1) [Majlis-e-Shoora (Parliament)] in relation to the affairs of the Federation, and the Provincial Assembly of a Province in relation to affairs of a Province may, by law provide for the establishment and constitution of a Public Service Commission."

It may be observed from the text of Articles 240 and 242 that the two govern/regulate appointments to the service of Pakistan and not the civil service as argued by learned counsel. The term 'civil service' has been defined in the Civil Servants Act, 1973:

"2. Definitions.---(1) In this act, unless there is anything repugnant in the subject or context,--

...

(b) "civil servant" means a person who is a member of an All-Pakistan Service or of a civil service of the Federation, or who holds a civil post in connection with the affairs of the Federation, including any such post connected with defence,..."

(emphasis supplied)

On the other hand, the phrase 'service of Pakistan' has been explained in Article 260 of the Constitution as follows:

"260. Definitions (1) In the Constitution, unless the context otherwise requires, the following expressions have the meaning hereby respectively assigned to them, that is to say,—

...

"service of Pakistan" means any service, post or office in connection with the affairs of the Federation or of a Province, and includes an All-Pakistan Service, service in the Armed Forces and any other service declared to be a service of Pakistan by or under Act of

[Majlis-e-Shoora (Parliament)] or of a Provincial Assembly...”

(emphasis supplied)

15. It may be observed from the meanings assigned to the two terms that they are not synonymous. In fact, the phrase ‘service of Pakistan’ appears to be of wider import, a fact which was confirmed by the Court in **Registrar, Supreme Court of Pakistan Vs. Wali Muhammad** (1997 SCMR 141):

“...The expression 'service of Pakistan' used in Article 260 of the Constitution has a much wider connotation than the term 'Civil Servant' employed in the Civil Servants Act. While a 'Civil Servant' is included in the expression 'service of Pakistan', the vice versa is not true. 'Civil Servant' as defined in the Civil Servants Act, 1973 is just a category of service of Pakistan mentioned in Article 260 of the Constitution...”

(emphasis supplied)

This dictum was later cited with approval by the Court in the case of **Muhammad Mubeen-us-Salam Vs. Federation of Pakistan** (PLD 2006 SC 602) at para 35. These definitions and declarations of the Court show that although the terms ‘civil service’ and ‘service of Pakistan’ are not identical they do overlap in that the former is a sub-category of the latter. Consequently, the argument of learned counsel that Articles 240 and 242 do not apply because the beneficiary employees helped by the Act are not civil servants is a tenuous one. It may very well be possible that these employees fall within the category of service of Pakistan.

16. The test whether a person is in the service of Pakistan is whether he is performing functions in connection with the affairs of the Federation. In the judgment reported as **Salahuddin Vs. Frontier Sugar Mills & Distillery Ltd** (PLD 1975 SC 244) the Court elaborated this function test as follows:

“Now, what is meant by the phrase “performing functions in connection with the affairs of the Federation or a Province.” It is clear that the reference is to governmental or state functions, involving, in one form or another, an element of exercise of public power. The functions may be the traditional police functions of the State, involving the maintenance of law and order and other regulatory activities; or they may comprise functions pertaining to economic development, social welfare, education, public utility services and other State enterprises of an industrial or commercial nature. Ordinarily, these functions would be performed by persons or agencies directly appointed, controlled and financed by the State, *i.e.* by the Federal Government or a Provincial Government. However, in recent years, there has been manifest a growing tendency on the part of Governments to create statutory corporations for undertaking many such functions, particularly in the industrial and commercial spheres, in the belief that free from the inhibiting effect of red-tapism, these semi-autonomous bodies may prove more effective, flexible and also profitable. Inevitably, Government retains effective control over their functioning by appointing the heads and other senior officers of these corporations, by regulating their composition and procedures by appropriate statutes, and by finding funds for financing their activities.

...The primary test must always be whether the functions entrusted to the organization or person concerned are indeed functions of the State involving same exercise of sovereign or public power; whether the control of the organization vests in a substantial manner in the hands of Government; and whether the bulk of the funds is provided by the State. If

these conditions are fulfilled, then the person, including a body politic or body corporate, may indeed be regarded as a person performing functions in connection with the affairs of the Federation or a Province; otherwise not.”

(emphasis supplied)

Therefore, in essence for an entity (where a person is employed) to qualify as being in the service of Pakistan, it must fulfill three criteria:

- i. It must exercise public or sovereign power in some form;
- ii. The government must retain effective/substantial control over its functioning; and
- iii. Its activities must be mainly financed by the government.

The application of this test was duly explained in **Aitchison College Vs. Muhammad Zubair** (PLD 2002 SC 326):

“Applying the above test (laid down in Frontier Sugar Mills) on the facts of instant cases, we feel no hesitation in drawing inference that the Board of Governors, Aitchison College, Lahore headed by the Governor of the Province as its President alongwith other officers i.e. Secretaries Education, Finance and General Officer Commanding as well as unofficial Members are involved in providing education which is one of the responsibility of the State and by taking over its management and control the Board, exercises sovereign powers as well as public powers being a statutory functionary of Government... and even if for sake of arguments if it is presumed that no financial aid is being provided to the College from the Provincial Public exchequer, even then, the College remains in dominating control of the Provincial Government through Board of Governors. Therefore, the above test stands fully satisfied and we are persuaded to hold that organization of the Aitchison College, Lahore falls within the definition of a person.”

(emphasis supplied)

17. We have already noted in para 5 above that the present matter pertains (primarily) to 10 employers, namely: IB; CAR; NHA; PTCL; OPF; SLIC; CAA; WAPDA; SSGC and TCP. Except for IB, which is a civilian intelligence agency, all other 9 employers are attached departments/corporations of Ministries/Divisions:

Sr No.	Employers	Ministry/Division	Functions
1	CAR	Ministry of States and Frontier Regions	Facilitation of Afghan Refugees crossing the border into Pakistan.
2	NHA	Ministry of Communications	Planning, development, operation, repair and maintenance of National Highways and Strategic Roads.
3	PTCL	Ministry of Information Technology and Telecommunication	Provision of domestic and international telecommunication and related services.
4	OPF	Ministry of Overseas Pakistani and Human Resource Development	Welfare of overseas Pakistanis and their families.
5	SLIC	Ministry of Commerce	Life Insurance Business.
6	CAA	Cabinet Secretariat Aviation Division	Regulation and control of civil aviation activities within Pakistan.
7	WAPDA	Ministry of Water Resources	Development of water and hydropower resources in an efficient manner.
8	SSGC	Ministry of Energy	Transmission and distribution of natural gas.
9	TCP	Ministry of Commerce	Public sector trade house i.e., export of agricultural and consumer goods and import of essential commodities.

18. On an examination of the data listed above, it becomes clear that the vast majority of the employers involved in the litigation before us are performing functions which fall

within the exclusive domain of the State. Equally, their affairs are also substantially controlled by the Federal Government:

Sr No.	Employers	Administrative Control
1	CAR	All Chief Commissionerates and Commissioners work under the Ministry of States and Frontier Regions (http://kpkcar.org/about/introduction).
2	NHA	6 of the 7 members of the National Highway Council are either representatives of the Federal Government or are nominated by the President [Section 5(1) of the National Highway Authority Act, 1991].
3	PTCL	The Federal Government owns majority of the shares of PTCL (SRO 453(I)/2006 dated 09.05.2006).
4	OPF	Board of Governors is comprised of the relevant Minister and such other members as the Government nominates [Rule 2(gg) of the Emigration Rules, 1979]. All operations of OPF are managed by the Board of Governors taking into account the policy directions issued by the Government (https://www.opf.org.pk/about/).
5	SLIC	Directors are appointed by the Federal Government and Chairman of SLIC is also nominated by the Federal Government from amongst the Directors [Article 12(1) of Life Insurance (Nationalisation) Order, 1972].
6	CAA	5 of the 6 members of the Board are either representatives of the Federal Government or are nominated by it [Sections 4(2) and 14(1) of the Pakistan Civil Aviation Authority Ordinance, 2021 (“ 2021 Ordinance ”)]. Additionally, the directives issued by the Federal Government on matters of policy are binding on CAA [Section 28(1) of the 2021 Ordinance].
7	WAPDA	The appointment and removal of the Chairman and members of WAPDA are under the control of the Government [Sections 4(1) and 6 of Pakistan Water and Power Development Authority Act, 1958].
8	SSGC	Government of Pakistan directly and indirectly owns majority of the shareholding of SSGC (https://www.ssgc.com.pk/web/?page_id=68).
9	TCP	Directors of TCP are appointed by, and hold office during, the pleasure of the Federal Government (Article 92 of Memorandum and Articles of Association of TCP). Shares of TCP are owned by the Ministry of Commerce (https://tcp.gov.pk/page-page-aboutus).

19. In view of the above information, it is clear that nearly all of the employers before us are involved in the service of Pakistan (except employees of IB who are civil servants) and so there employees are squarely covered by the provisions of Articles 240 and 242 of the Constitution.

20. Learned counsel then argued that Article 240 merely specifies that appointments to the service of Pakistan must be governed by Federal legislation. It does not lay down any specific conditions for compliance by the appointing authorities during the appointment process. We consider that the said argument is best addressed by the judgment of this Court in **Mubashir Raza Jaffri Vs. Employees Old-Age Benefits Institutions** (2014 SCMR 949):

“22. In the **1st** case of **Muhammad Yasin** [PLD 2012 SC 132] (*supra*) the appointment of Chairman Oil and Gas Regulatory Authority (OGRA) was declared illegal. In the **2nd** case of **Muhammad Ashraf Tiwana** [2013 SCMR 1159] (*supra*) the appointment of the Chairman Securities and Exchange Commission of Pakistan (SECP) was held to be in contravention to statutory requirements. Both these cases reiterated the principle that appointments made in a statutory body or Corporation under the control of Provincial or Federal Government in an arbitrary and capricious manner cannot be allowed to hold the field. In the **3rd** case of **Tariq Aziz-ud-Din** [2010 SCMR 1301] (*supra*) this Court underscored the integral link between good governance and a strong and honest bureaucracy. It was stated that this could only come about if appointments made were based on a clear merit criterion, in accordance with the relevant laws and rules as opposed to favouritism and nepotism... All the cases discussed above reveal that the jurisdiction of this Court has been clear and consistent with regard to the manner in which appointments to public offices are to be made strictly in accordance with

applicable rules and regulations, without any discrimination and in a transparent manner. Thus, it is essential that all appointments to public institutions must be based on a process that is palpably and tangibly fair and within the parameters of its applicable rules, regulations and bye-laws...”

(emphasis supplied)

21. It may be noticed from the dictum cited that Article 240 is simply the bedrock on which appointments to the service of Pakistan are to be made. It is then the responsibility of the appointing authorities to ensure that appointments are made strictly in accordance with the relevant laws (including the applicable rules and regulations) that incorporate the principles of merit (selection through a competitive process), non-discrimination, transparency and fairness. Whilst the cases just cited were primarily concerned with appointments to the senior most posts in an organisation, in our considered view the same principles apply to appointments on any post in public service since an organisation can only best serve the people of Pakistan when all its employees are qualified individuals who are selected through a fair and transparent process. In the absence of dedicated supporting staff, no senior officer sitting at the helm of affairs can succeed in guiding the nation towards prosperity. However, it is significant that these cherished principles are not merely fruit of judge made law but they also emanate from the fundamental rights enshrined in the Constitution, especially Article 18 (freedom of trade, business

or profession) wherefor they occupy an immutable character.

This is confirmed by the Court in **Mushtaq Ahmad Mohal Vs. Honourable Lahore High Court** (1997 SCMR 1043):

“16. ...It may be observed that even otherwise, the Constitutional requirement, inter alia, enshrined in Article 18 of the Constitution... includes the right of a citizen to compete and participate for appointment to a post in any Federal or a Provincial Government department or an attached department or autonomous bodies/corporations etc. on the basis of open competition, which right he cannot exercise unless the process of appointment is transparent, fair, just and free from any complaint as to its transparency and fairness...”

(emphasis supplied)

The above enunciation of law reiterates principles laid down by the Court in **Munawar Khan Vs. Niaz Muhammad** (1993 SCMR 1287) at para 6 and **Abdul Jabbar Memon: In re** (1996 SCMR 1349). However, the material on record in the present case, furnished by the relevant Ministries/Divisions, establishes that these principles of merit, non-discrimination, transparency and fairness were not followed in the vast majority of the initial appointments (from 01.11.1993 to 30.11.1996). Therefore, such defective appointments suffered from illegality and were void.

Sr No.	Employer	Violations
1	IB	Appointed without advertisement and test and/or interview. FST and Hon'ble Supreme Court dismissed their appeals/petitions before their reinstatement under the Act.
2	NHA	Appointed without advertisement and competitive process.
3	OPF	Some employees were appointed on contract without observing codal formalities. Others were terminated on competition of respective projects. 01 was terminated after disciplinary proceedings.
4	SLIC	Appointed without following codal formalities.

5	CAA	Appointed without advertisement and rules.
6	WAPDA	Employees were terminated as they were irregularly appointed.
7	SSGC	Employees were hired on special projects on temporary assignments and were declared redundant after competition of projects.
8	TCP	Employees were terminated on winding up of their organizations (which subsequently merged with TCP).

22. For the initial appointments of beneficiary employees that were illegal from the outset, it was not within the competence of Parliament to enact laws that firstly, bypassed the settled requirements enshrined in the Constitution for joining public employment and secondly, protected these unlawful appointments without curing their respective defects. Such contravention can be seen in Section 4 of the Act where all beneficiary employees were ordered to be regularised (either on the same scale or on one-step higher scale) within a certain timeframe without complying any codal formalities and without regard to the nature of the post that they occupied prior to their dismissal, removal or termination from service. A few examples of the types of employees who were required to be regularised under the Act are listed below for reference:

- i. Employees appointed on permanent, temporary, regular or ad-hoc basis or otherwise against a regular or temporary post [Section 4(a)];
- ii. Employees appointed on contract basis against a regular or temporary post [Section 4(b)]; and
- iii. Employees appointed as any type of trainee [Section 4(d)].

23. It is an established principle of law that State and public functionaries act as fiduciaries for and are responsible/accountable to the people of Pakistan. They are

duty bound to act in the furtherance of public interest [In re: Suo Motu (2010 SCMR 885) at para 63]. However, how the public interest was promoted by reinstating these beneficiary employees who had been inducted without complying with the duly prescribed procedure for appointment is neither determinable nor defensible. Consequently, this ground raised by the review petitioners fails to satisfy the test of 'error apparent on the face of the record.'

C. Beneficiary Employees Constitute a Distinct Class

24. In the alternate to provide constitutional protection to the Ordinances and Act, learned counsel for the parties vehemently argued that these pieces of legislation were promulgated and enacted to redress the grievous wrong committed by the unlawful dismissal, removal or termination of the beneficiary employees. It was emphasised that the beneficiary employees had been appointed during PPP's rule

which is why they were later removed by the caretaker government. Reference was made to the Debates of the Senate from the relevant time period by the learned Attorney General to demonstrate that the Act was indeed passed to provide relief to the beneficiary employees as casualties of political victimisation. Therefore, the learned counsel argued that the beneficiary employees formed a distinct class founded on reasonable classification so their reinstatement did not violate the command in Article 25 for equal treatment.

25. It is by now settled law that although Article 25 of the Constitution envisages equality amongst citizens, it also allows for differential treatment of persons who are not similarly placed under a reasonable classification. However, to justify this difference in treatment the reasonable classification needs to be 'based on intelligible differentia that has a rational nexus with the object being sought to be achieved' [**Commissioner Inland Revenue Vs. Tariq Mehmood** (2021 SCMR 440) at para 14]. Only if this test is satisfied can the distinct treatment meted out to a class of persons be sustained under Article 25. Consequently, it needs to be examined whether the beneficiary employees formed members of a class on the basis of reasonable classification in order to be entitled to the relief granted by the Act.

26. As great emphasis was laid by learned counsel on political victimisation, it would be appropriate to consider that point first. A similar matter of this nature, albeit in the context of criminal prosecution for offences, came up in **Mobashir Hassan Vs. Federation of Pakistan** (PLD 2010 SC 265). In that case the constitutionality of the National Reconciliation Ordinance, 2007 ("**2007 Ordinance**") was challenged before this Court. Whilst many objections were raised against the 2007 Ordinance, the only provision pertinent for our present attention is Section 2 *ibid* which provided:

"2. Amendment of section 494, Act V of 1898.---

In the Code of Criminal Procedure, 1898 (Act V of 1898), section 494 shall be renumbered as sub-section (1) thereof and after sub-section (1) renumbered as aforesaid, the following sub-section (2) and (3) shall be added, namely:-

(2) Notwithstanding anything to the contrary in sub-section(1), the Federal Government or a Provincial Government may, before the judgment is pronounced by a trial court, withdraw from the prosecution of any person including an absconding accused who is found to be falsely involved for political reasons or through political victimization in any case initiated between 1st day of January, 1986 to 12th day of October, 1999..."
(emphasis supplied)

27. The Court, whilst examining the *vires* of Section 2 observed:

"64. The amendment in Section 494 Cr.P.C....had also created discrimination with the accused, who were facing trial prior to 1st January, 1986 or had been charged for the offence after 12th October, 1999. The preamble of the NRO, 2007 coupled with any of its substantive part, had not disclosed the reasons, calling for so-called 'national reconciliation' in between this period, presuming that an accused, facing charge entailing major penalty of death, is not entitled for discharge, by means of extra judicial forum, or for the same treatment, if he has committed the crime after 13th October, 1999, and up till now. We have posed a question to ourselves i.e. whether there had been no political victimization after 12th October, 1999 uptill now, on account of which accused persons were involved falsely in the commission of the offence but we could not succeed in getting the answer of the same except observing that specific dates were incorporated in the NRO, 2007 for achieving specific object as well as the specific purpose...

...

66. Above discussion... persuades us to hold that the classification amongst the accused persons, facing trial during the specific period

i.e. 1st January 1986 to 12th October 1999, is based on arbitrariness and no reasons have been disclosed in the NRO, 2007 for entering into so-called 'reconciliation' with particular group of accused persons, except in the name of 'national reconciliation' on the pretext that the cases were politically motivated against them... Similarly on the basis of intelligible differentia for reasonable classification, the differentiation has not been understood logically and it seems that for specific purpose, an artificial grouping was made, causing injustice to the accused persons, who were placed in the same position and instead of achieving the 'national reconciliation' the NRO, 2007 had served the purpose of 'individual reconciliation'."

(emphasis supplied)

28. The extracts produced hereinabove make it clear that the features of Section 2 that persuaded the Court, *inter alia*, to declare the 2007 Ordinance *ultra vires* the Constitution also exist in the present case. These are as follows:

- i. The Act discriminates against similarly placed persons who were dismissed, removed or terminated from service in the periods prior to 01.11.1996 and subsequent to 12.10.1999;
- ii. The preamble of the Act coupled with its substantive provisions do not disclose the reason for reinstatement of only those employees who had been dismissed, removed or terminated from service during the specific period of 01.11.1996 till 12.10.1999; and
- iii. The Act was enacted to achieve a specific object and purpose, namely, the reinstatement of those employees who had been initially appointed during PPP's tenure.

29. Clearly then the Act's classification of the time period is neither reasonable nor based on any intelligible differentia. There is also no rational nexus with the object

being sought to be achieved because if the intent of Parliament was to assist people who had been dismissed, removed or terminated from service on account of political victimisation then there is no rhyme or reason as to why only the persons dismissed, removed or terminated between 01.11.1996 and 12.10.1999 were granted this relief. Surely such a classification ought to have been preceded by some study, data collection and analysis, however, the same are lacking. In our view there must exist a plethora of people since 1947 (till date) who have been unfairly removed from service on account of political victimisation yet no favour is extended to them by the Act. Even the Debates of the Senate are of no help to the review petitioners because it is well-established 'that reference to legislative history is permissible only as an aid to construction of legislation which is ambiguous or obscure or the literal meaning of which leads to an absurdity i.e. from the text of a statute, the court is unable to decipher the real intent of the Legislature' [**Gulshan Bibi Vs. Muhammad Sadiq** (PLD 2016 SC 769) at para 6]. However, no such absurdity or obscurity exists in the present case because the Act categorically omits to mention any reason for only reinstating the beneficiary employees who were initially appointed during the relevant period (between 01.11.1993 and 30.11.1996). In this way, the Act is on an even worse footing than the 2007 Ordinance which at least referred to political victimisation in Section 2 to justify its

chosen time period. As a result, this contention of learned counsel also does not satisfy the test of review.

D. Caretaker Government had no Power to Dismiss, Remove or Terminate the Beneficiary Employees

30. To sustain the validity of the legislation, learned counsel next submitted that the beneficiary employees were removed by the caretaker government even though the latter possessed no such power. However, even if for the sake of argument we were to accept this contention of learned counsel, the issue arises that the time period (from 01.11.1996 till 12.10.1999) for which relief has been granted by the Act significantly exceeds the tenure of the caretaker government of the time (from 05.11.1996 till 17.02.1997). If indeed the purpose of reinstating the beneficiary employees was solely to redress this illegality then it needs to be pondered why the Act granted relief to beneficiary employees who had been dismissed, removed or terminated prior to 05.11.1996 and subsequent to 17.02.1997 when no caretaker government was in office. In fact, a substantial portion of the time period fixed by the Act (during which the allegedly illegal dismissals, removals or terminations took place) overlaps with the tenure of constitutionally elected governments which enjoyed the power to dismiss, remove or terminate persons from service. Therefore, this argument of learned counsel has no relevance to the facts of the present case.

E. Fundamental Rights of the Regular Employees

31. Learned counsel then submitted that by the reinstatement of the beneficiary employees, no fundamental rights of any regular employee had been violated. Specifically, it was argued that if at all there was some disadvantage suffered by the regular employees it was limited only to the extent of seniority/promotion which in any event was not a right, let alone a fundamental right.

32. We respectfully disagree with this contention put forward by learned counsel. We have already observed in paras 21 and 22 that the reinstatements under the Act were carried out without following any proper procedure and without having regard to the nature of the posts occupied by the beneficiary employees during their initial appointments. On the other hand, the regular employees were inducted into service after fulfilling all the codal formalities. Therefore, by giving leeway to the beneficiary employees and by placing them at the same (or in some cases better) footing in the organisational structure of the employers the fundamental rights of the regular employees were breached, in particular Articles 4, 9 and 18 of the Constitution, which read:

“4. Right of individuals to be dealt with in accordance with law, etc. (1) To enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Pakistan.

...

9. Security of person. No person shall be deprived of life or liberty save in accordance with law.

...

18. Freedom of trade, business or profession. Subject to such qualifications, if any, as may be prescribed by law, every citizen shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business:"
(emphasis supplied)

33. All three constitutional provisions envisage a State in which all aspects of a citizen's life, including his/her right to enter a profession, will be regulated by law. Nevertheless, the Act by reinstating the beneficiary employees whilst ignoring the applicable laws, rules and regulations, which detailed the process to be followed in making appointments, has flouted these guarantees of the Constitution. Therefore, the Act has directly impinged upon the fundamental rights of regular employees. Consequently, no exception can be taken to the finding recorded in the judgment under review in this regard.

F. Non-Obstante Clause

34. Learned counsel then submitted that the judgment under review attached undue weightage to the non-obstante clause contained in Section 4 of the Act. It was argued that it was within the legislative competence of Parliament to nullify a Judgment of the Supreme Court, therefore, the judgment under review could not hold that the 'non-obstante clause has failed abysmally to provide unfettered protection to the Act of 2010' (refer to para 23 of the judgment under review).

35. As already pointed out in para 5, the cases before us are chiefly concerned with the beneficiary employees of 10

employers. These employees run into the thousands and in many cases employees of the same employer are represented by different counsel. During arguments, it was argued by counsel and became clear to us that of the beneficiary employees before us only some had challenged their removal, dismissal or termination before the relevant fora whereas the rest had not pursued any legal action (this is also the case with beneficiary employees who have worked for the same employer). In light of these unusual circumstances and our findings recorded above, we consider it best not to delve deeper into this issue as it will purely be an academic exercise which this Court does not ordinarily enter into **[Munawar Iqbal Gondal Vs. Nasira Iqbal]** (2014 SCMR 860) at para 4]. We are solidified in our view by the fact that this ground was primarily used in the judgment under review not as a reason to strike down the Act but to simply hold that the non-obstante clause did not prevent judicial scrutiny of the Act on the constitutional plane. Therefore, not much substance, if any, is left in determining what the implication of the non-obstante clause is.

G. Reading Down of the Act

36. The next challenge thrown to the decision in the judgment under review by learned counsel was that it exceeded the mandate of Article 8(1) of the Constitution. For ease of reference, this provision is produced below:

“8. Laws inconsistent with or in derogation of fundamental rights to be void. (1) Any law, or any custom or usage having the force of law, in so far as it is inconsistent with the rights conferred by this

Chapter, shall, to the extent of such inconsistency, be void."

(emphasis supplied)

Learned counsel argued that in deference to Article 8(1) of the Constitution, the judgment under review should have read down Section 4 of the Act and preserved its watered-down version along with the other provisions of the Act that were not inconsistent with fundamental rights. However, such contention of learned counsel fails to recognise two important aspects of Section 4:

- i. Firstly, Section 4 as it stands does not suffer from just a singular defect. Instead, it is fundamentally flawed. It not only provides one-step higher regularisation in sub-Section (a) [which could potentially have been read down] but it also, as already observed in para 22, regularises all beneficiary employees regardless of the post they were occupying before their initial termination. This defect is so central to Section 4 that to read it down would essentially require this Court to re-write it which is not permissible as such an exercise would enter into the realm of legislation [**Zahid Iqbal Vs. Muhammad Adnan** (2016 SCMR 430) at para 14]; and
- ii. Secondly, Section 4 is the governing/primary provision of the Act. Therefore, once it is declared unconstitutional no substance is left in the Act as all other provisions are secondary to Section 4 and cannot control the operation of the Act on their own. As a result, no purpose will be achieved in retaining the Act on the statute book when its effect will have been destroyed by the deletion of Section 4.

H. Prospective Application of Judgment Under Review

37. Learned counsel finally argued that even if the Act was *ultra vires* the Constitution, the declaration in the judgment under review should have applied prospectively, in accordance with law settled by this Court, thereby protecting the benefits accorded to the beneficiary employees.

38. In our considered opinion, the proposition put forward by learned counsel does not fully understand the true import of the judgments of this Court on the effect of a declaration made by it. In **Pakistan Medical & Dental Council Vs. Muhammad Fahad Malik** (2018 SCMR 1956) the Court acknowledged that judgments of the Court operate prospectively, however, it qualified the said finding by holding that the judgments of this Court could operate retrospectively if so declared [para 24(k)]. Consequently, there is no binding rule that all judgments issued by the Court take effect only from the date of pronouncement. An example of this can be seen in the **Mobashir Hassan** case (*supra*) wherein the Court observed:

“171. We... have come to the conclusion that the NRO, 2007 as a whole, particularly its Sections 2, 6 and 7, is declared void *ab initio* being *ultra vires* and violative of Articles 4, 8, 12, 13, 25, 62(f), 63(1)(h), 63(1)(p), 89, 175, 227 of the Constitution, therefore, it shall be deemed *non est* from the day of its promulgation i.e. 5th October 2007 as a consequence whereof all steps taken, actions suffered, and all orders passed by whatever authority, any orders passed by the Courts of law including the orders of discharge and acquittals recorded in favour of accused persons, are also declared never to have existed in the eyes of law and resultantly of no legal effect.”

(emphasis supplied)

39. In the instant case, we are also faced with a similar situation since the Act has been adjudged to be violative of the different provisions of the Constitution, specifically Articles 4, 9, 18, 25, 240 and 242. The judgment under review has placed reliance on two other judgments of this Court reported as **Ali Azhar Khan Baloch Vs. Province of Sindh** (2015 SCMR 456) and **Shahid Pervaiz Vs. Ejaz Ahmad** (2017 SCMR 206) [refer to paras 54-56 of the judgment under review] to arrive at the same decision. We have perused these judgments and find no cavil with what has been stated therein. Even the principle of *locus poenitentiae* is of no help to learned counsel since the consistent stance of this Court has been that the said principle 'would not be attracted in a case under which the benefit has been extended by a law which was violative of the provisions of the Constitution' [**Azam Shah Vs. Federation of Pakistan** (2022 SCMR 201) at para 13]. As a result, no ground for review is made out on this front.

CONCLUSION

40. For the detailed reasons set out above, we dismiss the 108 review petitions. The 35 Civil Misc. Applications and 3 Civil Misc. Appeals are disposed of as having become infructuous.

41. However, we consider that having rendered a service of 10 years or more since their reinstatement under the Ordinances and the Act the beneficiary employees, most of whom are nearing retirement and have minimal future job prospects, have dedicated a considerable period of their life to

their employers and so deserve to be treated with leniency. More so, when through no fault of their own, the beneficiary employees were inducted and subsequently reinstated into the service of their employers without the fulfilment of the necessary codal formalities. Therefore, in exercise of our inherent power conferred under Order XXXIII, R6 of the Supreme Court Rules, 1980 and in reliance on our power to do *ex debito justitiae*, as elaborated in the judgment reported as **Sher Alam Khan Vs. Abdul Munim** (PLD 2018 SC 449):

“20. We are aware that in the instant case, the *lis* has reached this Court not by invoking Article 184(3) of the Constitution (though the learned High Court was exercising its Constitutional jurisdiction under Article 199). Be that as it may, this Court is not precluded from converting one type of proceedings into another type, including the existing proceedings under Article 185(3) of the Constitution and exercising our jurisdiction under Article 184(3) of the Constitution so as to adjudicate upon disqualification or lack of qualification of Respondent No.I. This Court in the judgment reported as Muhammad Akram v. DCO, Rahim Yar Khan and others (2017 SCMR 56) held as follows:

“7. The Courts are sanctuaries of justice, and in exercise of authority to do ex debito justitiae, that is to say remedy a wrong and to suppress a mischief to which a litigant is entitled. No fetters or bar could be placed on the High Court and or this court to convert and treat one type of proceeding into another type and proceed to decide the matter either itself provided it has jurisdiction over the *lis* before it in exercise of another jurisdiction vested in the very court... Courts have been treating and or converting appeal into revisions and vice versa and Constitution Petitions into appeal or revision and vice versa.”

we convert these review proceedings filed under Article 188 of the Constitution into proceedings under Article 184(3) read

with Article 187 *ibid* to grant the following relief to the beneficiary employees:

- i. Following the principle set out in **Muhammad Akram Vs. Registrar, Islamabad High Court** (PLD 2016 SC 961) at para 79 [we note that this judgment was subsequently overruled in **Gul Taiz Khan Marwat Vs. Registrar, Peshawar High Court** (PLD 2021 SC 391), however, that declaration was only to the extent that the administrative orders of a Chief Justice of a High Court are not amenable to writ jurisdiction], we hold that the beneficiary employees who were holding posts for which no aptitude, scholastic or skill test was required at the time of initial termination (01.11.1996 to 12.10.1999) shall be restored to the same posts they were holding when they were terminated by the judgment under review;
- ii. All other beneficiary employees who were holding posts on their initial termination (01.11.1996 to 12.10.1999) which required the passing of an aptitude, scholastic or skill test shall be restored to the posts, on the same terms and conditions, they were occupying on the date of their initial termination. However, to remain appointed on these posts and to uphold the cherished principles of merit, non-discrimination, transparency and fairness expected in the process of appointment to public institutions these beneficiary employees shall have to undergo the relevant test, applicable to their posts, conducted by the Federal Public Service Commission within 3 months from the date of receipt of this judgment;
- iii. The improvement in the terms and conditions of service of all the beneficiary employees shall be granted strictly in accordance with the applicable laws, rules and regulations; and

iv. The relief granted in sub-paragraphs (i) and (ii) shall not be granted to those beneficiary employees whose initial termination of service (01.11.1996 to 12.10.1999) was on grounds of absence from duty, misconduct, corruption, misappropriation of money/stock or unfitness on medical grounds if such termination was not set aside finally by a court of law.

42. Copies of this judgment shall be sent to the concerned employers, the Ministry of Law and Justice and the Establishment Division for appropriate action. Consequently, all review petitions are dismissed and all applications/appeals are disposed of in the above terms.

Judge

Judge

Judge

Judge

Islamabad
17.12.2021

NOT APPROVED FOR REPORTING